JEN TECHNOLOGIES (PVT) LTD

AND

TABOKA MAPHOSA

Versus

OLD MUTUAL LIFE ASSURANCE COMPANY ZIMBABWE (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO, 23 October 2024 & 27 JUNE 2025

Opposed application- Special Plea

N.V Moyo, for the 1st and 2nd Plaintiff
G. Ndlovu, for the Defendant

Introduction.

DUBE J: To properly understand this matter one needs to narrate the chronological order of events preceding this hearing. Time lines are crucial. The main matter started off by way of summons commencing action accompanied by the plaintiffs' declaration. The summons and declaration were served on the defendant on the 29th May 2024. The defendant entered an appearance to defend on the 4th June 2024. The following day ie. the 5th of June, the defendant wrote a letter to the plaintiffs in terms of Rule 42(1) (a) as read with sub rule 3 of The High Court Rules 2021, drawing them to defects which can be classified as:

a) Citation of a none existent party and
b) Lack of peremptory details on the summons and declaration in terms of Rule 12(5)(b) and (c) as read with Rule 13(1)(a)

In that letter the defendant gave the plaintiffs 12 days within which to remove the cause of complaint as required by sub rule 3 of Rule 42 *supra*.

On the 21st June, the last day of the 12 day *dies induciae* given in the letter by defendant, plaintiff replied flatly refusing to take any remedial steps. If anything, the plaintiffs only dealt with the issue of citation, insisting that they cited the correct party. They did not at all deal with

the second part of the objection pertaining to the provisions of Rule 12(5)(b) and (c) r/w Rule 13(1)(a).

On the same date, the 21st of June 2024 the plaintiffs filed a Notice of Amendment per Rule 41(1) & (2) giving the defendant a *dies* of 10 days to file a written objection to its notice. On the 24th of the same month the defendant wrote to the plaintiff's legal practitioners bitterly protesting the lack of service of the notice of amendment and the persistence by the plaintiffs to forge ahead.

The following day, on the 25th the plaintiff filed its notice to plead and intention to bar calling upon the defendant to file its plea within 5 days or be barred. It is quite clear that the *dies* given in the notice of amendment had not yet lapsed. In any event the 5 days *dies* given in the notice to plead and intention to bar was going to lapse before the earlier given 10 days. The defendant found itself pushed up against the wall, a rough stone one for that matter.

On the 26th *even*, the defendant filed its objection to the amendment under heavy protest, and stated that it did so only to protect its interests as it was being forced to plead against the summons and declaration still in their defective form. It also filed its Special Plea simultaneously with the Heads of Arguments.

Arguments for the Defendant

1. The defendant through its counsel argued that its correct names as enclosed in their letter to the plaintiffs is Old Mutual Insurance Company Private Limited. It averred that the omission of Private Limited rendered the citation invalid and accordingly the summons a nullity. Reference was made to the case of *Gariya Safrais Pvt Ltd v Van Wyke* 1996(2) ZLR 246 (H) to the effect that ;

   > "A summons has legal force and effect when it is issued by the plaintiff against an existing legal entity or natural person. If there is no legal or natural person answering to the names written in the summons as being those of the defendants, the summons is null and void".

2. It was argued that in this case the plaintiffs cited a non-existent defendant, thus in the same vein the summons were a nullity. Further that once a nullity the summons were incapable of any amendment and must be accordingly struck off.

   Counsel further argued that if the plaintiffs wished to seek reliance on the case of *Mapondera & 55 Ors v Freda Rebecca Gold Mine Holdings Limited* SC 81-22 to argue

a misdescription, such would be a mis interpretation as there is a proviso that a party must make an application to amend for the summons to be valid. If not then the nullity remains. Counsel reiterated that *in casu* the plaintiffs refused an opportunity to amend hence the summons were pleaded in their defective state. He closed the first leg of his argument by retorting that should the plaintiffs forge ahead with their claim in this state and obtain judgment in their favour, it would be a *brutum fulmen* as it would not be executable against anyone in the Old Mutual *stable.*

3. It was argued further that the summons do not comply with Rules 13 & 14 of the High Court Rules, 2021 as they lack essential averments to sustain a *causa.* He propounded that the plaintiff acted in bad faith by initiating an amendment process and then abandoning it mid-way. For that reason their summons remained a nullity and that they should be sanctioned with punitive costs.

Argument for the Plaintiffs

1. The plaintiff took a preliminary objection to the special plea to the effect that the defendants' special plea is improperly before the court as it was filed outside the 10 day period as required by Rule 37 subrule 3 of the court rules. It was argued that such rule is peremptory and should be strictly complied with. In *casu* the defendant entered appearance to defend on the 4th June and their special plea filed on the 26th. It was contended that their *dies* expired on the 18th.

   The defendant raised an objection on the basis that this was not raised anywhere prior in the pleadings hence counsel felt ambushed. I overruled the objection and allowed argument as it was a point of law capable of being raised any time before judgment. It was argued further that since a notice to plead had been filed no further pleading could have been filed except a plea on the merits.

2. It was submitted that what the defendant raised as its first argument was in fact not a special plea but an exception. That a special plea should be dispositive of the matter for example the issue of prescription or lack of jurisdiction.

3. Counsel for the plaintiff argued further that that the defendant used a document bearing a letter head of Old Mutual Insurance Company in the prosecution of 2nd plaintiff in the magistrates' court and thus unfairly drew their attention to a wrong citation. Now that

the correct names have been revealed plaintiff is still desirous of applying for an amendment.

4. Counsel for the plaintiff then argued that if these proceedings end in their favour they will seek condonation to apply to amend the description of the defendant in the summons and declaration.

5. Argument for the plaintiffs was closed with a prayer for punitive costs.

In replication

Counsel for the defendant replicated to the effect that after they had served their first letter of complaint on the plaintiff's on the 5th June, plaintiffs responded with a notice of amendment. Once that was done, they could not raise a special plea as the cure they sought was set in motion. They could only do so if the amendment sought was refused by the court. He argued that they could not plead to summons whose contents were *subjudice*.

He contends that it was only when a notice to plead and intention to bar was served on them that they understood it to mean that the amendment application had been abandoned. For that reason they elected to plead to the summons as they stood in their defective state.

In relation to the argument whether this was a special plea or an exception, counsel argued that the existence of a party or not is an issue of law so is the requirement to include the bio data. It can only be raised by way of a special plea.

Whether defendant was called by what name in criminal proceedings does not matter in civil proceedings. Finally that there was no application for condonation before the court hence the special plea should be upheld and the summons and declaration dismissed.

The Law

No one can take advantage of his or her own wrong. These words ring true in this matter. I refer to the matter of *Farai Mushoriwa v City of Harare* HH195-14 where it was held, per BHUNU J, (as he then was) that;

> "The doctrine against deriving benefit from one's own wrongs was amply articulated with characteristic lucidity in the famous American case of Riggs v Palmer (1899) 115 NY 506, NE 188. In that case the New York court had this to say:
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> "All courts may be controlled in their operation and effect by general, fundamental maxims of the common law. No one shall be permitted to profit by his own fraud, or to

> take advantage of his own wrong, or to found his own claim upon his own inequity or to acquire property by his own crime."

This court came to the same conclusion in the case of *Wang & Ors.* v *Ranchod & Ors* 2005 (1) ZLR 415 where a wife who had shot and killed her husband wanted to be appointed executrix dative to his estate to the exclusion of his relatives.

In the present case defendant's counsel wrote a letter to the plaintiffs' counsel on the 5th of June 2024 in terms of Rule 42(1) (a) as read with sub rule 3 of The High Court Rules 2021, drawing them to the defects in their summons i.e citation of a none existent party and lack of peremptory details on the summons and declaration in terms of Rule 12(5) (b) and (c) as read with Rule 13(1) (a).

Rule 12(1) & (5) (b) reads as follows

> 12. (1) Every action shall be commenced by way of a summons addressed to the defendant and signed by the registrar who issues it.
>
> …….
>
> (5) Before issue, every summons shall set forth-
>
> (b) the full names, sex (if plaintiff is a natural person), occupation and residence or place of business of the plaintiff……..
>
> © the plaintiff's email address, facsimile, telephone or cellular phone number …" (my own underlining for emphasis)

The provisions of this rule are couched in peremptory terms as I have highlighted above. That is not arguable. What I wish to highlight however, is that when counsel, who is much senior writes a letter whether as a mandatory requirement of the rules or out of professional courtesy, the duty of reciprocal professional courtesy is to carefully read the letter and understand its contents. The next duty is to promptly reply. It is obviously not a requirement to agree, but it is advisable to disagree in a courteous manner citing the rules or authority one relies on. It might help to run the contents of the letter with senior counsel within the establishment and get their wisdom.

It does not usually yield favourable results to sit on correspondence and reply on the very last day of the ultimatum, correctly or wrongly given.

In the present case counsel for the plaintiffs was given 12 working days within which to rectify the cause of complaint. She sat on *dies* without reply. She replied on the very last day. The contents of her reply are rather abrasive, hurried and without regard to the contents of the letter she is replying to. Resultantly she dealt with only one part of the complaint and completely ignored the last. For the part that she dealt with she blatantly refused to comply.

Surprisingly on the same day she issued out a notice of amendment seeking to comply in part with the cause of complaint. She gave her own new *dies* of 10 days within which to file an objection. Within 3 days of such *dies*, defendant's counsel again wrote to her protesting among others the lack of service upon them and the non- compliance with the rules.

In response to that letter counsel for the plaintiffs filed a notice to plead and intention to bar. Clearly counsel was indicating left while turning right. Without doubt, she created two self-destructing processes. Following either, defendant would act to its detriment. For example if defendant acted on the notice of amendment it could be barred. If it acted on the notice to plead and intention to bar, it ought to have pleaded to a clearly defective summons. Counsel for defendant opted to act on the notice to plead and intention to bar. Counsel for the plaintiff argues that the time to file a special plea had come and gone. That cannot be true because when the 10 day *dies* expired, it is the plaintiffs who were on a 12 day notice to regularise their papers. On the 12th day, counsel for plaintiffs gave an impression that she is not amending her summons but on the same day filed a notice of amendment. That created confusion on the part of the defendant. It was not clear which route counsel for the plaintiff was taking. Defendant got vexed. Its explanation is logical that by so doing plaintiff nullified the prosecution to finality of the notice of amendment. In other words, it abandoned such application. Defendant was now forced to plead to a summons which was irregular. It being irregular in the sense that there was no amendment to the citation of the defendant despite correct names being given. If no application to amend was made, no amendment can be effected. The summons and declaration as it stands violates the peremptory provisions of Rule 12(1), (5) (b) and (c) of the High Court Rules. To argue that defendant is barred from raising a special plea after having been sent on the wrong trajectory by the plaintiff's counsel deliberately or clumsily would be to allow the plaintiff to benefit from its non- compliance with the rules which closely borders on unethical conduct. I accept that the *dies* within which to raise a special plea ran from the instance it was clear that an application for amendment had been abandoned.

I further accept that as the summons stand there is citation of a non -existent party and none compliance with Rule 12 as cited above. I shall not revisit and comment on the *Gariya Safaris* and *Mapondera* cases *supra* as I find them to be applicable and binding in this matter. No proper summons exists before this court.

Costs

It is trite that punitive costs, also known as costs on a higher scale, are awarded by our courts to punish a party for their inappropriate or unreasonable behaviour during legal proceedings. Such costs are discretionary and used to express the court's disapproval of conduct such as vexatious litigation, abuse of process or persistent disregard of court orders.

In *casu* counsel for the plaintiff rejected constructive communication grounded on the Rules of the Court. She strong headedly proceeded with mutually destructive processes against obvious and clear correspondence. As a result defendant was unnecessarily put out of pocket.

Disposition

In the foregoing the following order is made.

1. The special plea be and is hereby upheld.
2. Plaintiffs' summons and declaration be and is hereby struck off for want of compliance with the Rules.
3. 1st and 2nd plaintiff to pay costs on an attorney client scale one paying for the other to be absolved.

Tanaka Law Chambers, 1st and 2nd plaintiff's legal practitioners
Gill,Godlonton and Gerrans, defendant's legal practitioners